



Validity 08-Nov-22 until: 31-Oct-23
Market Europe
Currency VND
Rate Basis Rates are valid for packaged only
 per villa per night

Villa Type	Validity		Contract rate						
	From	Until	1 Bedroom 2 persons	2 Bedroom 4 persons	3 Bedroom 6 persons	4 Bedroom 8 persons	Triple Supplement (With Extra Bed & Meal Plan)		Meal Plan
							Child	Adult	
Island Villa	08-Nov-22	18-Jan-23	5,086,000	6,251,000	7,416,000	NA	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	7,266,000	8,431,000	9,596,000	NA	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	5,086,000	6,251,000	7,416,000	NA	932,000	1,165,000	BB
	01-Apr-23	31-May-23	4,360,000	5,525,000	6,690,000	NA	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	5,086,000	6,251,000	7,416,000	NA	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	4,360,000	5,525,000	6,690,000	NA	932,000	1,165,000	BB
Hillside Villa	08-Nov-22	18-Jan-23	5,490,000	6,655,000	7,820,000	NA	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	7,670,000	8,835,000	10,000,000	NA	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	5,490,000	6,655,000	7,820,000	NA	932,000	1,165,000	BB
	01-Apr-23	31-May-23	4,763,000	5,928,000	7,093,000	NA	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	5,490,000	6,655,000	7,820,000	NA	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	4,763,000	5,928,000	7,093,000	NA	932,000	1,165,000	BB
Ocean View Villa	08-Nov-22	18-Jan-23	5,995,000	7,160,000	8,325,000	9,490,000	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	8,174,000	9,339,000	10,504,000	11,669,000	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	5,995,000	7,160,000	8,325,000	9,490,000	932,000	1,165,000	BB
	01-Apr-23	31-May-23	5,268,000	6,433,000	7,598,000	8,763,000	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	5,995,000	7,160,000	8,325,000	9,490,000	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	5,268,000	6,433,000	7,598,000	8,763,000	932,000	1,165,000	BB
Sunset Villa	08-Nov-22	18-Jan-23	7,416,000	8,581,000	9,746,000	NA	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	9,596,000	10,761,000	11,926,000	NA	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	7,416,000	8,581,000	9,746,000	NA	932,000	1,165,000	BB
	01-Apr-23	31-May-23	6,690,000	7,855,000	9,020,000	NA	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	7,416,000	8,581,000	9,746,000	NA	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	6,690,000	7,855,000	9,020,000	NA	932,000	1,165,000	BB
Eden Bay - Ocean View Villa	08-Nov-22	18-Jan-23	NA	NA	10,431,000	NA	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	NA	NA	12,611,000	NA	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	NA	NA	10,431,000	NA	932,000	1,165,000	BB
	01-Apr-23	31-May-23	NA	NA	9,705,000	NA	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	NA	NA	10,431,000	NA	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	NA	NA	9,705,000	NA	932,000	1,165,000	BB
Beachfront Villa	08-Nov-22	18-Jan-23	NA	9,279,000	10,444,000	NA	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	NA	11,459,000	12,624,000	NA	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	NA	9,279,000	10,444,000	NA	932,000	1,165,000	BB
	01-Apr-23	31-May-23	NA	8,552,000	9,717,000	NA	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	NA	9,279,000	10,444,000	NA	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	NA	8,552,000	9,717,000	NA	932,000	1,165,000	BB
Eden Bay - On the Rock Villa	08-Nov-22	18-Jan-23	NA	NA	18,851,000	NA	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	NA	NA	21,031,000	NA	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	NA	NA	18,851,000	NA	932,000	1,165,000	BB
	01-Apr-23	31-May-23	NA	NA	18,125,000	NA	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	NA	NA	18,851,000	NA	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	NA	NA	18,125,000	NA	932,000	1,165,000	BB
On the Rock Villa	08-Nov-22	18-Jan-23	NA	NA	17,508,000	18,673,000	932,000	1,165,000	BB
	19-Jan-23	25-Jan-23	NA	NA	19,688,000	20,853,000	932,000	1,165,000	BB
	26-Jan-23	31-Mar-23	NA	NA	17,508,000	18,673,000	932,000	1,165,000	BB
	01-Apr-23	31-May-23	NA	NA	16,781,000	17,946,000	932,000	1,165,000	BB
	01-Jun-23	31-Aug-23	NA	NA	17,508,000	18,673,000	932,000	1,165,000	BB
	01-Sep-23	31-Oct-23	NA	NA	16,781,000	17,946,000	932,000	1,165,000	BB



Meal Rate	Validity		Breakfast		Lunch		Dinner	
	From	Until	Buffet		Description		Description	
			Adult	Child	Adult	Child	Adult	Child
	08-Nov-22	31-Oct-23	Included		NA	NA	NA	NA
Optional Event	24-Dec-22		Christmas Eve Dinner Buffet				3,495,000	1,747,500
Optional Event	31-Dec-22		New Years Eve Dinner Buffet				4,893,000	2,446,500

Distribution of Contracts

- Contract Rates are valid for bundled, packaged or brochure leisure business only. Contract Rates are only valid for bona fide Tour Operators.
- Contract Rates cannot be offered by the Tour Operator direct to the consumer via the Internet, or by any other internet channels, through owned, affiliated or subsidiary companies, without prior written approval from Accor (to be given or withheld at Accor's absolute discretion).
- Internet rates and Tour Operator Contracts are available by contacting the Accor Inbound Sales Office.

Distribution of Contracts on the Internet

- Contract Rates are valid for bundled, packaged or brochure leisure business only and cannot be offered in markets other than specified. The Contract Rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes distribution or retailing via the Internet.
- For the avoidance of doubt, the rates offered in this Agreement are not applicable for sale on Hotel only (non-packaged) basis via online consumer channels including, but not limited to, the distributor's own, affiliate, partner or onward distributor's websites. It is the contracted distributor's responsibility to enforce this clause.

CONTRACTED RATES & DISTRIBUTION OF RATES

- Rates in this contract include government tax & service charges and are non-commissionable.
- Rates in this contract are valid ONLY for FIT bookings from 1 to 3 villas with immediate name-list. Rates for group inquiries (leisure series, ad hoc leisure and MICE groups) are available separately on request.
- Allotments are exclusively on the basis that the hotel is included in a wholesale program and subject to quarterly review.
- Contract Rates are valid for bundled, packaged or brochure leisure business only and cannot be offered in markets other than specified.

TAXES & LEVIES

The statutory taxes and levies added depend on the location of the Hotel and are subject to change upon new directives of local authorities. Should the applicable tax rate and any other taxes and levies as imposed by governmental and/or regulatory bodies increase or decrease after the conclusion of this agreement, rates granted by Hotel will be readjusted accordingly. The applicable tax rate will be the rate in effect at the date of payment.

Check-in / Check-Out Time:

- Check-in time (all periods) is 3 pm. For a guaranteed early check in the room will be blocked the night before and a charge equivalent to 100% of 1 night at the contract rate will apply. Breakfast is included.
- Check-out time is 12 noon. For a guaranteed late check out until 6 pm a charge equivalent to 50% of 1 night at the contract rate will apply. For guaranteed late checkout past 6 pm a charge equivalent to 100% of 1 night at the contract rate will apply.

Early Bird offer :

Book 30 days prior to arrival and receive 10% discount off

Validity: 8 Nov 22 - 31 Oct 23

Stay Pay offer:

Europe market

Stay 7 nights and pay 6 nights

Valid

8 Nov 22 - 31 Oct 23

All offers cannot be combined, it cannot be used in conjunction with other promotions or discounts.

Children Policy:

- Accommodation and breakfast are free for 1 child per bedroom under 12 years old sharing existing bedding.
- Maximum 1 additional child under 12 years old per Villa is allowed with extra bed.
- Complimentary baby cot upon request, subject to availability and advance booking is required.

PAYMENT & CREDIT TERMS

Full payment is required for all services provided unless credit and billing approval has been established directly with Hotel.

For companies with approved credit, the Hotel will send a statement of account, and settled by the Tour Operators in full, without producing consent from guests, received within thirty (30) days after tender of invoice. The Hotel reserves the right to withdraw credit facilities provide, subject to Tour Operator's prevailing credit standing with the Hotel.

CANCELLATION POLICY (all dates are inclusive)

For period 8 Nov - 23 Dec 2022, 3 - 18 Jan 2023, 26 Jan - 27 Apr 2023, 3 May - 31 Aug and 5 Sep - 31 Oct 2023 :

For cancellations received inside 7 days of arrival, the hotel will apply a charge equivalent to 100% of the contracted rate for the entire stay. For reservations amendments which shorten the stay, the same cancellation conditions will apply.

For period 24 Dec 2022 - 2 Jan 2023, 19 - 25 Jan 2023, 28 Apr 2023 - 2 May 2023 and 1 - 4 Sep 2023:

For cancellations received inside 21 days of arrival, the hotel will apply a charge equivalent to 100% of the contracted rate for the entire stay. For reservations amendments which shorten the stay, the same cancellation conditions will apply.

NO SHOW POLICY

In case of a no show where the guest does not arrive, the hotel will apply a charge equivalent to 100% of the entire stay.

Bank Account Details

Bank Name: Vietinbank
 Account Name: SUN PHU QUOC LIMITED LIABILITY COMPANY – ONG DOI CAPE BRANCH
 Bank Branch: Hanoi Branch
 Account Number: 110002688943 (USD) - 112002685834 - (VND)
 Swift Code: ICBVVNVX106



BROCHURE COPY & PHOTO APPROVAL

All brochure copy and photographs produced by Tour Operator depicting the Hotel must be approved by Hotel in advance. When the Hotel is included in the agents' brochure/website, a copy check must be signed off by the Hotel by providing a copy to the Hotel prior to printing. Otherwise all responsibility for incorrect information and liability is that of the Tour Operator. A copy of the brochure/web link is required to send to the Hotel.

RIGHT TO TERMINATE

If either the Tour Operator or the Hotel fails or neglects to perform or observe the terms required under this Agreement and such failure continues for a period of 7 days after service of a written certified notice from the other party ("the non-defaulting party") calling upon the defaulting party to remedy the failure, then the non-defaulting party can request to terminate this Agreement without prejudice to any rights of the parties arising prior to such termination.

Force Majeure Event means an event beyond the control of one Party, which could not reasonably have been foreseen and which effects cannot be avoided by appropriate measures, preventing this Party from performing its obligations performed under this Agreement.

Force Majeure Event between the Hotel and the Tour Operator

Neither Party shall be liable in case of a failure to perform or a delay in the performance of its obligations hereunder due to a Force Majeure Event which was unforeseeable at the execution date of this Agreement.

The Party affected by the Force Majeure Event shall notify the other Party as soon as reasonably possible of the occurrence of the Force Majeure Event. Such notice shall detail how the Force Majeure Event prevents the performance of its obligations hereunder.

As from the occurrence of said notification, the Parties' respective obligations shall be suspended during the time of the Force Majeure Event, and neither Party shall incur any liability in this regard. However, in any event, the affected Party shall make its best efforts to mitigate the effects of such Force Majeure Event.

If the Force Majeure Event lasts more than thirty (30) days, then the Parties expressly agree to discuss in good faith the impact of the Force Majeure Event on this Agreement and on the Parties' respective obligations hereunder and shall negotiate, in good faith, any amendment, whether temporary or definitive, to be made to this Agreement.

Should the Parties fail to find a mutually acceptable solution within thirty (30) days, then either Party shall be entitled to terminate this Agreement as of right, by written notice to the other Party, without any further formality, without incurring any liability and without any indemnity being due. Termination shall be effective as of the date of receipt of the aforementioned written notice.

In any event, each Party shall bear all its own expenses resulting from the occurrence of the Force Majeure Event.

Force Majeure Event between the Hotel and a Guest

The Hotel or a Guest (i.e. the end customer who books Hotel accommodation services through the Tour Operator distribution channels on an individual basis for leisure purposes in accordance with this Agreement, provided that the end customer is a natural person) shall not be liable in case of a failure to perform or a delay in the performance of its obligations hereunder due to a Force Majeure Event which was unforeseeable at the time of booking.

In any event, for any booking, as the Tour Operator acts as an intermediary between the Hotel and the Guest for the only purpose of facilitating bookings, the Tour Operator cannot and is not authorized to grant more rights to the Guest than granted by the Hotel and as such, the Tour Operator is not authorized to and shall not determine whether a Force Majeure Event has occurred in relation to a booking on behalf of the Hotel and/or on behalf of a Guest, such determination being left to the Hotel's sole discretion. In this regard, should the Hotel and/or a Guest invoke a Force Majeure Event in relation to a booking, the Tour Operator shall only convey any exchanges of information related thereto to the Hotel and/or the Guest.

Any breach of the foregoing by the Tour Operator shall be at the Tour Operator's entire responsibility and the Agent shall indemnify the Hotel of any and all costs incurred in this regard.

If the Hotel is unable to honour a Guest's reservation due to Force Majeure Event, or an exceptional event, the Hotel reserves the right to relocate and transport the Guest.

CONFIDENTIALITY

The Tour Operator confirms and agrees that this Agreement is confidential. The Tour Operator shall not in any circumstance divulge or permit to be divulged the contents of this agreement. Contract may not be transferred from one company to another without specific authorization of the Hotel.

ACCEPTANCE

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void. All rates are subject to allotment and/or availability.

Tour Operator may not assign or delegate its rights or duties under this Agreement without Hotel's prior approval. This Agreement is governed by and is to be constructed in accordance with the laws of ...

(country of location of the Hotel). The parties irrevocably agree that the commercial court in the jurisdiction the Hotel is located will have exclusive jurisdiction to settle any dispute which may arise out of or in connection with this contract. If any provision of this Agreement is held to be invalid or unenforceable that provision will be eliminated or limited to the minimum extent possible, and the remainder of the Agreement will have full force and effect. If either party agrees to waive its right to enforce any term of this Agreement, it does not waive its right to enforce any other terms of this Agreement. This Agreement constitutes the entire agreement between the parties, supersedes all other written and oral agreements between the parties concerning its subject matter, and may not be amended except by a writing signed by Hotel and Tour Operator.